

GRIMES COUNTY COMMISSIONERS COURT

OFFICIAL MINUTES — WEDNESDAY, AUGUST 19, 2026

The Grimes County Commissioners Court met on Wednesday, August 19, 2026, at 9:00 A.M. Members Present: County Judge Joe Fauth, Commissioner Chad Mallett, Commissioner David Tullos, Commissioner Michael Raska, Commissioner Phillip Cox.

— Regular

Call to Order

County Judge Joe Fauth called the meeting to order.

Invocation

Pledge of Allegiance to the U.S. Flag

Pledge of Allegiance to the Texas Flag

Public Comments

We look forward to hearing from the citizens of Grimes County. If you wish to make public comments you will need to submit a Public Participation Form prior to the start of the meeting and give it to the County Clerk. Public comments will be limited to 2 minutes per person. Judge Fauth asked if any commissioners had anything to share. County Judge Joe Fauth announced that Anderson Volunteer Fire Department is holding one of their annual fundraisers and cook-offs at the Expo Center, starting Friday evening August 21st and continuing all day Saturday.

Consent Agenda Items

County Judge Joe Fauth announced that the consent agenda consisted of three items: approval of the treasurer's list of claims and bills, approval of payroll, and approval of budget amendments or line item transfers. Judge Fauth noted that there were no line item transfers or budget adjustments to consider. Commissioner Chad Mallett moved to approve all three consent agenda items, and the motion was seconded by Commissioner Michael Raska. Hearing no further discussion, the motion carried unanimously.

Action: Motion by Commissioner Chad Mallett to Approve consent agenda items one, two, and three: Treasurer's List of Claims and Bills, payroll, and budget amendments/line-item transfers. Seconded by Commissioner Michael Raska. Carried (5–0–0).

- 1 Consider and take action to approve the Treasurer's List of Claims and Bills.
- 2 Consider and take action to approve payroll.
- 3 Consider and take action to approve Budget Amendments and/or Line-Item Transfers.

Presentation of Employee Service Awards.

- 4 Consider and recognize the following employees for their years of service:

10 YEARS

Clint Becker

County Judge Joe Fauth recognized Clint Becker for ten years of service, noting that Mister Becker had already received his award earlier in the Human Resources office, and offered congratulations to him before the court moved on to the next agenda item.

Grimes County Judge - Joe Fauth III

5 Consider and take action to select Salary Grievance Committee (SGC) according to Local Government Code 152.014 and 152.015. — Joe Fauth III

County Judge Joe Fauth explained that the court needed to select members for the Salary Grievance Committee according to Local Government Code sections 152.014 and 152.015. He noted that notifications had previously been sent to six individuals, but only four responded, with two declining to serve. Since the court needed one regular member and one alternate, a new drawing was necessary. Commissioner Chad Mallett pulled names from the pool one at a time, announcing James Shepard, Tammy Kiser, Irene Zurita, Jeffrey Vandien, Jennie Parker, and Charles Soliz as the selected committee members. County Judge Joe Fauth clarified for the audience that only individuals who had served on the last grand jury were included in the pool from which names were drawn. He confirmed with staff that letters would be sent to the selected individuals to notify them of their appointment.

Presentation of Monthly Departmental Reports:

6 Emergency Management Services — Emergency Management Services

EMC/Fire Marshal Dione Bumpous presented the monthly emergency management services report, noting that her office had responded to five fires since the last report, including three grass fires and two structure fires. She reported that she is currently completing the fire marshal course, has completed her fire investigator certification, and has obtained her TCFP certification. Projects underway include completing documentation for July flooding with a recommendation that Grimes County be included in the FEMA disaster declaration, converting emergency annexes into emergency support functions, and updating the countywide fire protection plan to account for new subdivisions.

Presentation of Monthly Commissioners Court Liaison Reports:

7 County Judge: Maintenance, HR, IT, Emergency Management, Road Department, Veterans Services, Elections, Navasota Grimes County Chamber of Commerce; Commissioner Pct. 2: Animal Shelter, Historical Commission, Navasota Grimes County Chamber of Commerce, Bluebonnet Groundwater Conservation District Board; Commissioner Pct. 3: 911 Addressing/Permits/Environmental/Solid Waste, BVCOG Solid Waste Advisory Committee; Commissioner Pct. 4: Fairgrounds, Hospital Contracts, EMS Services, Health Resource Center

County Judge Joe Fauth reported that the county is monitoring fire dangers and had requested a survey of fire chiefs regarding hazards in the county. Commissioner David Tullos had no report but noted that Historical Commission Chairman Kathy Wells had an enlisted agenda item regarding upcoming activities for the Grimes County Historical Commission. Commissioner Phillip Cox reported no complaints from the fairgrounds following a recent gathering, complimented the county's building staff, and noted upcoming events including a Texas Department of Transportation I-14 corridor public meeting for the Lions Club that evening and private events scheduled at the fairgrounds, while reserving the right to address EMS services under a later agenda item.

Grimes County Historical Commission Chairman - Kathy Wells (DT)

8 Discuss and take action to authorize the historical commission to organize a Sunday In The Park community cultural history event. — Kathy Wells, Grimes County Historical Commission

Historical Commission Chairman Kathy Wells presented the proposal for Sunday in the Park, a community cultural history event scheduled for Sunday, October 18, 2026, from noon to five. She noted that the success of the Hispanic Heritage Festival held in September 2025 encouraged the

commission to organize another cultural heritage event. The Sunday in the Park festival will feature presold fried chicken meals with sides for twenty dollars each, raffle tickets for a handmade quilt, local artisan vendors, and diverse cultural entertainment including German and folk dance troupes, cloggers, Polish folk dancers, gospel music, bluegrass, mariachi, and ballet, with hopes that one or two school groups will also perform. Attendees are invited to bring blankets and chairs or take their meals to go. The commission projects expenses not to exceed three thousand dollars and anticipates income of eight thousand dollars, with a fundraising goal of five thousand dollars to support park improvements. County Judge Joe Fauth asked about the cooking arrangement and confirmed the food preparation would occur in an enclosed food truck using propane burners.

Action: Motion by Commissioner David Tullos to Authorize the Grimes County Historical Commission to organize a Sunday in the Park community cultural history event on 10/18/2026. Seconded by Commissioner Phillip Cox. Carried (5-0-0).

Grimes County Engineer - Jon Steiber (JF)

9 Road Department Report. — Jon Steiber, Road Department

County Engineer Jon Steiber reported on the road department's standard work and specific projects completed. He noted that all washouts from the July 14 flooding have been repaired, and County Road 146 bridge was rebuilt using Gabion baskets for a more permanent solution than previous dirt-dumping methods. The department completed first course chip sealing on County Roads 206, 313, and 316A, is currently stabilizing and chip sealing the remainder of County Road 175, and is removing and replacing the Oak Drive Bridge in-house. County Engineer Steiber also reported that County Road 304, the half-mile section damaged by the concrete plant, has been reclaimed and stabilized with Permazyme, with internal discussions ongoing that will be brought to court. For development activities, he noted that weekly development training continues on Tuesdays at 1PM at the Justice Center Annex, ongoing OSSF maintenance contract compliance operations are issuing violations and referring non-compliant parties to the district attorney, and OSSF development training is scheduled on dates listed in the report. For grants, County Engineer Steiber highlighted that bids for County Road 409 at Tawneyberry will open September 3, and property acquisition negotiations are nearing completion pending questions from commissioners' court. County Judge Joe Fauth asked whether mowing and shredding work was performed in-house or by outside personnel, and County Engineer Steiber explained that a contractor performs three to four rounds of mowing annually depending on available funding, while county personnel handle requested areas and spot mowing as needed, with sufficient funding available for the current year.

10 Request authorization to bid or renew annual contracts. — Jon Steiber

County Engineer Jon Steiber presented the annual request to authorize bidding or renewing annual contracts, explaining that the contracts are structured to allow renewal for up to three years with a maximum 2% cost increase for vendors if justified, and recommended approval.

Action: Motion by Commissioner Chad Mallett to Approve authorization to bid or renew annual road department contracts. Seconded by Commissioner Michael Raska. Carried (5-0-0).

Grimes County Auditor - Jessi Murphy (JF)

11 Review and accept the Annual Comprehensive Financial Report for FYE 9/30/2025. — Jessi Murphy, Grimes County Auditor

County Auditor Jessi Murphy presented the annual comprehensive financial report for fiscal year ending September 30, 2025, with assistance from Amber Hensley Benitez, a senior auditor with Patello Brown and Hill. Amber Hensley Benitez reported that the county received an unmodified

opinion in accordance with generally accepted accounting standards and government auditing standards, indicating no material misstatements were found. She highlighted that net position within the government activities fund increased by approximately six million dollars, primarily driven by a revenue increase of about two point five million dollars, mostly from property taxes. The governmental funds balance sheet showed an unassigned fund balance of nineteen point two million dollars available for general operating expenses, and the county maintained approximately eleven months of fund balance in the general fund, which Amber Hensley Benitez characterized as very healthy and allowed for a deficit budget in the following year. She noted that actual expenditures came in approximately two point two million dollars under budget, with total expenditures of twenty point five million dollars against a budgeted twenty point two million dollars. Regarding the single audit report, triggered by federal expenditures exceeding one million dollars, Amber Hensley Benitez reported an unmodified clean opinion with no material misstatements found, noting that the county expended approximately two point three million dollars in federal funds, with the largest portion being over two million dollars from the ARPA grant. County Judge Joe Fauth noted that all ARPA funds have been expended and the county has submitted closeout documentation for federal audit. Amber Hensley Benitez also reported that a prior audit finding from the previous year was fully resolved and that the county received the GFOA award in 2024 and is expected to receive it again in 2025. The matter was discussed at length, and Commissioner David Tullos moved to accept the audit.

Action: Motion by Commissioner David Tullos to Accept the Annual Comprehensive Financial Report for fiscal year ending 9/30/2025. Seconded by Commissioner Chad Mallett. Carried (5–0–0).

Grimes County Commissioner Precinct 4 - Phillip Cox

12 Discuss and take action to issue a letter of intent to purchase ambulances. — Phillip Cox

Commissioner Phillip Cox moved that the county issue a letter of intent to purchase four additional ambulances, noting that the need for additional ambulance services had been demonstrated through data shared with the court multiple times and that ambulances from other counties were being called in almost daily because the county's existing fleet was insufficient. Billy Rice was invited to assist in the discussion and explained the process for ordering ambulances, clarifying that the timeline from letter of intent to first payment would be approximately one year or more, with deliveries expected between September and November for ambulances previously ordered. County Judge Joe Fauth expressed concerns about the county's ability to absorb the financial costs, noting that Saint Joe's Hospital had identified a 1.3 million dollar annual deficit from providing ambulance services in Grimes County, with revenues covering only about 50 percent of operational costs due to inadequate Medicare and Medicaid reimbursement rates and uninsured or underinsured patients. Judge Fauth suggested an alternative approach of phasing in additional ambulances over time—keeping two of the older units in service when the two previously ordered ambulances arrived rather than replacing all four immediately, allowing the county to eventually operate six ambulances by 2028 without incurring all costs at once. Billy Rice confirmed this approach was feasible but noted it would increase the cost per mile on older equipment, though he emphasized the county's maintenance program could sustain older vehicles through engine and transmission rebuilds if necessary. Commissioner David Tullos moved to amend the motion to order two ambulances at this time rather than four, with the option to issue another letter of intent after the budget was finalized in October or November, and Commissioner Chad Mallett seconded the amendment. The discussion at length addressed the relationship between ambulance purchases and the county's future subsidy obligations to support EMS services, with recognition that adding ambulances would increase the annual deficit the county would need to help cover.

The amendment passed three to two, with Commissioners Mallett and Tullos and Judge Fauth voting in favor, while Commissioners Cox and Michael Rasca opposed. The amended motion, reduced from four to two ambulances, then passed on the same three-to-two vote, and Judge Fauth directed that the letter of intent paperwork be sent to County Attorney Megan Barcak for approval before the court signed it.

Action: Motion by Commissioner Phillip Cox to Issue a letter of intent to purchase four ambulances, coordinated through the Grimes County Attorney's office, the Grimes County Auditor's office, and Billy Rice. Seconded by Commissioner Michael Raska.

Action: Motion by Commissioner David Tullos to amend the motion to reduce the letter of intent for ambulance purchase from four ambulances to two ambulances, and revisit once the budget is finalized. Seconded by Commissioner Chad Mallett. Carried (3-2-0).

Action: Motion by Commissioner David Tullos to Issue a letter of intent to purchase two ambulances, coordinated through the Grimes County Attorney's office, the Grimes County Auditor's office, and Billy Rice. Seconded by Commissioner Chad Mallett. Carried (3-2-0).

Grimes County Judge - Joe Fauth III

13 Consider and take action regarding the Burn Ban and authorize the County Judge as signatory. — Joe Fauth III

Not currently under a burn ban order.

Regarding the proposed burn ban, EMC/Fire Marshal Bumpous conducted a survey of county fire chiefs and reported that three recommended implementing a ban, two recommended against it, and four were indifferent. She noted that current conditions support a ban, citing a KBDI drought index of 621, which exceeds the historical threshold of 600, and that wind and drying conditions are worsening. The current burn ban includes four standard exemptions: firefighter training, public utility and mining operations, agricultural crop planning or harvesting, and prescribed burns by certified managers. EMC/Fire Marshal Bumpous recommended adding an exemption for cooking fires in grills and closed cooking appliances such as smoke pits, provided they are conducted on dirt, concrete, or rock surfaces with water sources or fire extinguishers available nearby. County Judge Joe Fauth expressed initial concern about this exemption given an upcoming fundraiser at the fairgrounds but was satisfied upon learning that the facility would comply with safety requirements. Commissioner David Tullos questioned whether any existing operations would fall under the certified burn manager exemption and was informed that none currently do, though some land-clearing operations in the county would be prohibited under the ban if enacted. County Judge Joe Fauth moved to initiate a burn ban effective immediately and to exempt cooking fires conducted on appropriate surfaces with proper extinguishing materials present, which was seconded by Commissioner Chad Mallett. EMC/Fire Marshal Bumpous stated she would publish guidelines for the new exemption online, and the motion carried unanimously.

County Judge Joe Fauth reported that a burn ban had been initiated effective that date and would run for ninety days or until further notice by statute, with the option to extend for an additional period if needed at the end of ninety days.

Action: Motion by County Judge Joe Fauth to Authorize a burn ban effective this date, with an exemption for cooking fires (barbecue pits, grills, closed cooking appliances) conducted on dirt or concrete surfaces with proper extinguishing materi. Seconded by Commissioner Chad Mallett. Carried (5-0-0).

See [Exhibit A](#).

14 Discuss and take action on any issue regarding FY 27 Proposed Budget. — Joe Fauth III

The court discussed the FY 2027 proposed budget, which had been filed with the county clerk the

previous Friday. County Judge Joe Fauth reported that the proposed tax rate for 2027 had been lowered to 0395, marking the lowest tax rate for Grimes County since 1991. Judge Fauth also noted a recent adjustment following his discussion with the city manager of Navasota regarding the fire department's funding request; the request had been reduced from \$175,000 to \$140,000, and County Auditor Jessi Murphy was asked to incorporate this change into the budget. The court then engaged in detailed discussion of several personnel and compensation matters. Human Resource Director Atina Adair clarified that when the court previously approved moving patrol deputy entry-level positions to the midrange salary, that adjustment should have been applied to all similarly classified positions including jail deputies, animal control, and SROs, and she confirmed that revised salary structures would be printed for the court's review. The court also discussed the District Attorney's investigator compensation, agreeing to maintain a \$5,408 stipend for one investigator who performs additional duties beyond the scope of a regular investigator position. A significant discussion followed regarding EMC and Fire Marshal Dione Bumpous's compensation structure. Human Resource Director Atina Adair noted that Bumpous's salary would be lower than that of Chief Deputy Martha Smith even when combined with her stipend for fire marshal duties, and Commissioner David Tullos recommended revisiting her job description to emphasize her expanding fire marshal role and adjusting her salary accordingly, with a portion funded from restricted fire marshal funds. After discussion, the court tentatively agreed that approximately 60 percent of Bumpous's duties were fire marshal-related and 40 percent emergency management, though County Judge Fauth deferred finalizing specific salary allocations until the court could review detailed numbers at a follow-up meeting scheduled for the following Wednesday. County Auditor Jessi Murphy also raised the matter of Bumpous's future TCOLE certification, which is planned for spring 2027, and the court agreed that she would receive intermediate-level certification pay similar to other TCOLE-certified personnel, with at least 60 percent of that increase allocated to her fire marshal duties. The court briefly addressed the proposed purchase of four ambulances, which would be funded from reserves. County Auditor Jessi Murphy requested clarification on salary increase allocations for the upcoming budget cycle, noting that the budget currently included \$4 per hour across the board in combined COLA and merit increases, though actual distributions would be determined by department managers. Judge Fauth confirmed that for elected officials, the increase had been set at \$3 per hour. The court also briefly discussed the juvenile budget, which begins September 1 and must be entered into the system before month's end. Commissioner Chad Mallett expressed concern that the court needed to consider making cuts to other areas and increase capital project funding to offset anticipated future expenses and reduce the tax burden on citizens. The court deferred further budget discussion until the following Wednesday to allow time for detailed financial projections and salary structure revisions to be prepared.

Grimes County Facilities Director - Rodney Floyd (JF)

15 Discuss, consider, and take action regarding security measures at the Grimes County Historical Courthouse. — Rodney Floyd, Grimes County Facilities

The court convened in executive session pursuant to Texas Government Code Section 551.076 to discuss security measures at the Grimes County Historical Courthouse, with County Judge Joe Fauth, County Attorney Megan Barcak, facilities director Rodney Floyd, and IT director Andrew Duncan in attendance. Following the executive session, County Judge Joe Fauth reopened the meeting to consider and take action on the matter. Commissioner Chad Mallett indicated that direction had been given during the closed session and believed a motion was unnecessary. County Attorney Megan Barcak clarified that Rodney Floyd would gather information and return to the court with recommendations. County Judge Joe Fauth suggested that the direction be

formalized to state that facilities would review the security needs and report back to the court. It is expected the Court will convene in executive session pursuant to Texas Government Code Sec. 551.076, deliberation regarding deployment or implementation of security personnel and security devices.

Signature

Joe Fauth III, Grimes County Judge

DATED: 08/12/2026

Notice is to remain so posted continuously for at least 3 business days preceding the date of said meeting. (This Court reserves the right to convene in executive session at any time deemed necessary for the consideration of confidential matters under the Texas Government Code, Sections 551.071-551.084.) A Public Participation Form must be completed and submitted to the County Clerk no later than 15 minutes prior to the start of an open meeting of the Commissioners Court. Further information on Public Comment can be found in the Rules of Procedure, Conduct and Decorum available from the County Clerk.

ADJOURN

Motion by Commissioner Michael Raska to Adjourn the meeting. Seconded by Commissioner Chad Mallett. Carried (5-0-0).

10:53 AM

THE OFFICIAL MINUTES OF THE GRIMES COUNTY COMMISSIONERS COURT ON August 19th, 2026, ARE HEREBY APPROVED.

County Clerk Barbara Kimich

EXHIBITS

[Exhibit A — order prohibit outdoor burning.pdf](#)

STATE OF TEXAS §
 §
COUNTY OF GRIMES §

ORDER PROHIBITING OUTDOOR BURNING

WHEREAS, the Texas Forest Service has determined that drought conditions exist within the County AND

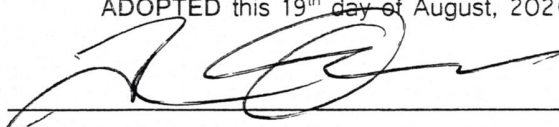
WHEREAS, Commissioners Court finds that circumstances present in all or part of the unincorporated area of the Grimes County create a public safety hazard that would be exacerbated by outdoor burning,

IT IS HEREBY ORDERED by the Commissioners Court of Grimes County that all outdoor burning is prohibited in the unincorporated area of the county for 90 days from the date of adoption of this Order, unless the restrictions are terminated earlier based on a determination made by the Commissioners Court (or the County Judge) based on a determination that the circumstances that required the Order no longer exist.

This Order is adopted pursuant to Local Government Code §352.081, and other applicable statutes. This Order does not prohibit outdoor burning activities related to public health and safety that are authorized by the Texas Commission on Environmental Quality for (1) firefighter training; (2) public utility, natural gas pipeline or mining operations; (3) planting or harvesting of agricultural crops; or (4) burns that are conducted by the prescribed burn manager certified under Natural Resources Code §153.048 and meet the standards of Natural Resources Code §153.047; (5) prohibited outdoor burning does not include food preparation in barbecue grills or containerized cooking appliances operated in a safe manner.

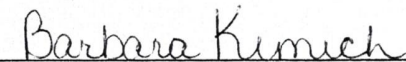
In accordance with Local Government Code §352.081(h), a violation of this Order is a Class C Misdemeanor, punishable by a fine not to exceed \$500.00.

ADOPTED this 19th day of August, 2026 by a vote of ____ ayes and ____ nays.



JOE FAUTH III, Grimes County Judge

Attest:



BARBARA KIMICH, Grimes County Clerk

BARBARA KIMICH, Grimes County Clerk